

25STCV07283 25STCV07283

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-08-18

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Case Number: 25STCV07283 Hearing Date: August 18, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

MOSHEN

MOTALLEBI,

Plaintiff,

vs.

BLUE

HILL SPECIALITY INSURANCE,

Defendant.

Case No.:

25STCV07283

Hearing

Date:

August 18, 2026

[TENTATIVE]

ORDER GRANTING MOTION TO STAY

I. BACKGROUND

Defendant Blue Hill

Specialty Insurance Company ("BHS") provided an insurance policy to Plaintiff Mohsen Motallebi ("Motallebi") for uninsured motorist coverage. While the coverage was in effect, Motallebi was involved in a motor vehicle collision with an uninsured driver; BHS allegedly failed to investigate and offer settlement in good faith regarding the incident. Motallebi sued BHS for breach of covenant of good faith and fair dealing.

On July 7, 2026, BHS filed the instant motion to stay this action pending the completion of arbitration. Motallebi filed an opposition. BHS replied.

II. LEGAL STANDARD

California Code of Civil

Procedure section 128[1]

provides that every court has the power to amend and control its processes so as to them conform to law and justice. A stay of proceedings is within such inherent discretion of the court. (Bailey v. Fosca Oil Co. (1963) 216 Cal.App.2d 813, 817.)

California Rules of Court

rule 3.515, subdivision (f) states "In ruling on a motion for a stay order, the assigned judge must determine whether the stay will promote the ends of justice, considering the imminence of any trial or other proceeding that might materially affect the status of the action to be stayed, and whether a final judgment in that action would have a res judicata or collateral estoppel effect with regard to any common issue of the included actions."

When determining if there

is good cause of grant a stay, the court considers four factors: "(1) whether the stay applicant has made a strong showing that he is likely to succeed on the merits; (2) whether the applicant will be irreparably injured absent a stay; (3) whether issuance of the stay will substantially injure the other

parties interested in the proceeding; and (4) where the public interest lies.”
(Nken v. Holder (2009) 556 U.S. 418.)

III. DISCUSSION

BHS requests the Court stay this action, pending arbitration, pursuant to section 1281.4. Section 1281.4 mandates that if a court of competent jurisdiction ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which the action is pending shall stay the action until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.

Here, it is undisputed Motallebi filed two actions concerning Motallebi's uninsured motorist policy with BHS: this case and Los Angeles Superior Court (“LASC”) case no. 25STCV07047. This case concerns breach of covenant of good faith and fair dealing in regard to BHS's investigation of the motor vehicle incident and alleged refusal to timely pay benefits. Case no. 25STCV07047 specifically petitioned the Court to compel arbitration regarding the subject incident, pursuant to BHS's arbitration policy. (Mot., Loza Decl. ¶ 3.) The Court granted Motallebi's motion to compel arbitration in case no. 25STCV07047, which was deemed related to this case earlier this year. (Loza Decl. ¶¶ 4-5, Ex.1-2.)

These two cases concern the same issue; investigation and payment warranted by BHS's uninsured motorist policy in regard to the subject collision. Motallebi's claim for breach of covenant of good faith and fair dealing is directly intertwined with the arbitrator's decision. For example, if the arbitrator finds Motallebi is not entitled to recover any amount of the policy, Motallebi's claim for breach of covenant would also be impacted. Any ruling issued in either case will necessarily impact the other. The mere fact arbitration is not proceeding at the rate Motallebi prefers is irrelevant to the Court's order granting a stay.

As arbitration has been ordered and is currently pending, the Court stays this action pending arbitration.

IV. CONCLUSION

Defendant Blue Hill Specialty Insurance
Company's motion to stay proceedings is GRANTED.

BHS is ordered to give notice.

DATED:

August 18, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.
- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.